

100 Beal Street: Primary Records Verification Guide

An Evidentiary Ledger of In-Hand Primary Sources, Open Documentary Questions, and Actionable Public Audit Protocols

Subject Property:

100 Beal Street, Hingham (School Tract II)

Record Fee Owner:

Hingham Housing Authority (M.G.L. c. 68-Unit Senior Affordable Housing 121B)

Proposed Development:

68-Unit Senior Affordable Housing (Peabody)

Document Identifier:

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Auditor's Evidentiary Standard: This document distinguishes between records *possessed, inspected, and verified* in the repository versus records that are *cited or referenced* but require independent inspection, docket searches, or public records requests.

1. Verified In-Hand Primary Records Ledger

The following eleven primary records are fully possessed, transcribed, and verified within the project archive:

#	Record & Citation	Date	Public Custodian / Grantor	Status	Documented Legal Action
01	1989 Fee Deed Plymouth Bk 09097, Pg 158	04/21/1989	Town of Hingham → HHA	VERIFIED	Town conveyed 15.014-acre School Tract II for \$45,751. Page 160 restricts use to adolescent facility with 30-year right of re-entry citing M.G.L. c. 184A, § 3.
02	1989 ZBA 40B Permit Plymouth Bk 09097, Pgs 162–170	04/21/1989	Hingham Zoning Board of Appeals	VERIFIED	Comprehensive Permit for 12-bed youth home; Condition 7 bars other structures on School Tract II without further ZBA relief.
03	Plan 100 of 2001 (Division) Plan Bk 44, Pg 412	06/12/2001	Gale Associates; Selectmen & HHA	VERIFIED	Survey divides land into 2.0-ac Lot 1 (youth home) and 8.02-ac Lot 2 (plateau) following Town-funded munitions bunker demolition.
04	2006 ATM Warrant Art. 38 Certified Vote by Town Clerk	05/01/2006	Hingham Annual Town Meeting	VERIFIED	Town Meeting voted by declared 2/3 majority to authorize Selectmen to amend restriction to permit affordable senior housing.
05	Select Board Minutes Executive & Open Session	02/26/2019	Hingham Board of Selectmen	VERIFIED	Select Board voted 3–0 to authorize litigation against HHA to enforce 2001 agreement (voted 9 days prior to 30-yr deed anniversary).
06	Transfer Restriction Notice Plymouth Bk 51379, Pg 244	07/18/2019	Mass. DHCD / EOHLC & HHA	VERIFIED	Notice recorded under M.G.L. c. 121B, § 34 prohibiting transfer of School Tract II without state housing director approval.
07	HHA Rescission Vote Official Minutes, Pgs 3–4	09/07/2021	Hingham Housing Authority	VERIFIED	Board voted 4–0 to formally rescind the June 5, 2019 transfer motion, confirming permanent HHA fee ownership of 100 Beal Street.
08	MassDEP Recorded ORAD Plymouth Bk 59527, Pg 273	12/10/2024	MassDEP / Conservation Comm.	VERIFIED	Order of Resource Area Delineation confirms 155+ wetland flags and classifies Wetland D as non-jurisdictional depression.
09	Official Developer RFP 155-Page Solicitation Package	04/16/2025	Hingham Housing Authority	VERIFIED	Procurement under M.G.L. c. 30B, § 16 for 99-year ground lease of 8.6-acre Lot B; includes Bohler civil study and CPA survey.
10	2024 ALTA Survey Note 3 Control Point Associates, Sheet 1	05/01/2024	Title Examiner Kellem & Kellem	VERIFIED	Schedule B, Part II, Note 3 flags unreleased 1989 restriction: <i>"THEREFORE NEED RELEASE OR CHANGE OF THIS RESTRICTION FROM THE TOWN OF HINGHAM."</i>
11	HHA Developer Award Vote Official Minutes, Pg 2	08/12/2025	Hingham Housing Authority	VERIFIED	Board voted 4–0 to award 100 Beal Street development to Peabody Properties / AHSC and authorize Executive Director to enter LDDA.

2. The 7 Critical Open Records Requiring Verification (Part 1: Items 1 to 4)

Detailed investigation profiles for unobtained records, pending dockets, and municipal agreements:

1. Complete Grantor/Grantee Deed Release Census (2006–Present)	Plymouth County Registry of Deeds
Core Question: Did the Selectmen ever record an instrument releasing or amending the 1989 restriction after the 2006 2/3 vote? Why It Matters: The 2024 ALTA Survey Note 3 indicates it was never recorded, leaving title encumbered. An exhaustive grantor/grantee title search eliminates any chance of a mis-indexed filing. Verification: Visit plymouthdeeds.org. Run Grantor search: Town of Hingham → Grantee: Hingham Housing Authority (2006–present). Filter codes: REL, AMD, MOD, AGR, DEED. Reverse search: Grantor: HHA → Grantee: Town of Hingham. Target Finding: Absence of recorded release confirms restriction remains active on title, requiring municipal release or 40B override.	
2. The Executed 2001 Memorandum of Understanding (MOU)	Hingham Town Clerk / Select Board Office
Core Question: What are the exact terms, covenants, expiration dates, and municipal remedies in the signed June 12, 2001 agreement? Why It Matters: Plan 100 of 2001 cites an agreement of June 12, 2001. In 2019, the Select Board cited funds spent under this MOU to justify litigation. Without the text, the validity of Town contractual claims is unverified. Verification: File Public Records Request (M.G.L. c. 66, § 10) with Town Clerk / Select Board for the executed agreement referenced on Plan 100 of 2001. Target Finding: Review clauses to determine if MOU contained an expiration date, re-conveyance covenant, or administrative cost-sharing.	
3. MassCourts Litigation Docket Search (2019 Lawsuit Check)	Massachusetts Trial Court (Plymouth Superior & Land Court)
Core Question: Did Town Counsel actually file a formal civil lawsuit after the Select Board voted 3–0 on February 26, 2019? Why It Matters: Proves whether the dispute was an active court case or resolved administratively before filing. Verification: Visit masscourts.org. Search Plymouth County Superior Court and Land Court. Parties: Town of Hingham vs. Hingham Housing Authority (Years: 2018–2022). Target Finding: If docket exists, obtain complaint to inspect formal claims; if none exists, confirms dispute was pre-litigation.	
4. State DHCD Supervisory Warning Letters (April 19 & June 26, 2019) Executive Office of Housing and Livable Communities (EOHLC)	
Core Question: What statutory analysis did Associate Director Amy Stitely provide regarding state-assisted housing land? Why It Matters: These letters represent the state's legal basis under M.G.L. c. 121B, § 34 for blocking the municipal land recapture. Verification: Submit Public Records Request to EOHLC Public Records Officer for Amy Stitely letters to HHA/Town between April and July 2019. Target Finding: Verifies the Commonwealth's statutory interpretation asserting sole supervisory authority over Chapter 689 public land.	

2. The 7 Critical Open Records Requiring Verification (Part 2: Items 5 to 7)

Detailed investigation profiles for pending board minutes, executed development agreements, and state permits:

5. Certified HHA Board Minutes & Votes (June 5, 2019 & August 25, 2026)		Hingham Housing Authority Administrative Office
Core Question:	What was the verbatim vote on June 5, 2019, and did the Board approve Item 9 on August 25, 2026?	
Why It Matters:	An agenda proves scheduling; only approved, certified minutes legally prove official board action, vote tallies, and approvals.	
Verification:	Contact HHA Executive Office (30 Thaxter Park) to inspect or request certified approved minutes for both dates.	
Target Finding:	Confirms legal passage of Item 9 authorizing execution of the Land Disposition Agreement with Peabody Properties.	
6. Executed Land Disposition Agreement (LDA) & Ground Lease		HHA Administration & Peabody Properties / AHSC
Core Question:	Has the final LDA been executed, and what specific closing conditions and milestones are established?	
Why It Matters:	The RFP contained draft templates. The executed contract establishes binding obligations, financing milestones, and contingencies.	
Verification:	Request executed agreement from HHA; monitor Registry of Deeds for subsequent recording of Notice of Lease.	
Target Finding:	Confirms whether municipal deed release is an explicit condition precedent before closing.	
7. MassHousing Project Eligibility Letter (PEL) & Chapter 40B Filing		MassHousing & Hingham Zoning Board of Appeals
Core Question:	Has MassHousing issued a formal PEL, and has the Comprehensive Permit application been filed with the ZBA?	
Why It Matters:	The PEL is mandatory before the ZBA can open hearings under Chapter 40B, which provides the mechanism to override local deed restrictions.	
Verification:	Monitor MassHousing 40B application portal and Hingham ZBA active hearing docket.	
Target Finding:	Establishes the commencement of the statutory 180-day local Comprehensive Permit public hearing window.	

3. Actionable Records Verification Checklist

Interactive and printable tracking matrix for document retrieval, inspection dates, and findings:

Done	Record Item & Description	Official Custodian	Inspection Method	Status / Notes
☐	Deed Release Census 1989 Restriction Run (2006–Pres.)	Plymouth County Registry of Deeds (Brockton, MA)	Online search at plymouthdeeds.org (Grantor: Hingham)	Date: _____ Score: ☐ Found ☐ None
☐	Executed 2001 MOU Naval Bunker Remediation Agr.	Hingham Town Clerk / Select Board Office	Public Records Request (M.G.L. c. 66, § 10)	Date: _____ Status: ☐ Pending ☐ Inspected
☐	Litigation Docket Search Town vs. HHA Court Filing Check	Plymouth Superior Court / Massachusetts Land Court	Electronic case search at masscourts.org	Date: _____ Docket #: _____
☐	DHCD Warning Letters Amy Stitely (Apr 19 & Jun 26, 2019)	Executive Office of Housing & Livable Communities (EOHLC)	Public Records Request to EOHLC Custodian	Date: _____ Status: ☐ Received ☐ Reviewed
☐	HHA Certified Minutes Votes: 06/05/2019 & 08/25/2026	Hingham Housing Authority (30 Thaxter Park)	In-person inspection / Board Secretary request	Date: _____ Aug 25 Tally: _____
☐	Executed Peabody LDA Land Disposition Agreement	HHA Administration / Peabody Properties	Contract inspection / Public Records Request	Date: _____ Closing Date: _____
☐	MassHousing PEL & 40B Comprehensive Permit Filing	MassHousing / Hingham Zoning Board of Appeals	Agency 40B portal / Town ZBA public hearing docket	Date: _____ ZBA Case #: _____

4. Public Records Request Templates (M.G.L. c. 66, § 10)

Pre-drafted formal public records requests ready for immediate submission:

Template A: To Hingham Town Clerk & Select Board (For 2001 MOU)

VIA EMAIL: townclerk@hingham-ma.gov / selectboard@hingham-ma.gov
 To: Records Access Officer, Town of Hingham, 210 Central St, Hingham, MA 02043
 RE: PUBLIC RECORDS REQUEST PURSUANT TO M.G.L. c. 66, § 10 – 2001 Beal Street MOU

Dear Records Access Officer:

Pursuant to M.G.L. c. 66, § 10, I hereby request digital copies of the following public record:

1. The fully executed Memorandum of Understanding (MOU), agreement, or contract entered into on or about June 12, 2001 between the Town of Hingham (acting through its Board of Selectmen) and the Hingham Housing Authority concerning School Tract II, 100 Beal Street, and/or the naval munitions bunker demolition and remediation, as referenced on recorded Plan 100 of 2001 (Plymouth Registry Plan Book 44, Page 412).

Please provide this record in electronic PDF format. If fees exceed \$25.00, please notify me in advance.

Template B: To State EOHLC (For 2019 Amy Stitely Supervisory Letters)

VIA EMAIL: eohlcpublicrecords@mass.gov
 To: Records Access Officer, Executive Office of Housing and Livable Communities, 100 Cambridge St, Suite 300, Boston, MA 02114
 RE: PUBLIC RECORDS REQUEST PURSUANT TO M.G.L. c. 66, § 10 – 100 Beal Street (Project 689-01)

Dear Records Access Officer:

Pursuant to M.G.L. c. 66, § 10, I hereby request digital copies of the following public records in EOHLC custody:

1. Formal letters or written correspondence from Amy Stitely, Associate Director of Public Housing, to the Hingham Housing Authority and/or Town of Hingham officials dated on or about April 19, 2019 and June 26, 2019 regarding proposed transfers, statutory transfer restrictions, or property dispositions at 100 Beal Street (Project 689-01).
 2. Any written approvals or conditional determination letters issued by EOHLC pursuant to M.G.L. c. 121B, § 34 regarding the long-term ground lease of 100 Beal Street (Lot B) from January 1, 2024 to present.

Template C: To Hingham Housing Authority (For Certified Minutes & LDA)

VIA EMAIL / IN-PERSON: Hingham Housing Authority, 30 Thaxter Park, Hingham, MA 02043
 RE: PUBLIC RECORDS REQUEST PURSUANT TO M.G.L. c. 66, § 10 – Board Minutes & Land Disposition Agreement

Dear Records Access Officer:

Pursuant to M.G.L. c. 66, § 10, I hereby request digital copies of the following public records:

1. Approved meeting minutes and voting records for the HHA Special Meeting held on June 5, 2019.
 2. Approved meeting minutes and voting records for the HHA Special Meeting held on August 25, 2026 (specifically Item 9 regarding approval of the Land Disposition Agreement with AHSC Peabody Developers LLC).
 3. A copy of the executed Land Disposition and Development Agreement (LDDA) or Land Disposition Agreement between HHA and AHSC Peabody Developers LLC / Peabody Properties for 100 Beal Street (Lot B).

5. Public Agency Directory & Official Portals

Key public contact information, physical addresses, and online search repositories:

Agency / Public Body	Address & Office	Telephone / Contact	Official Search Portal / Website
Plymouth County Registry of Deeds	50 Obery Street Plymouth, MA 02360	(508) 830-9200	plymouthdeeds.org (Search recorded deeds, plans, encumbrances)
Hingham Town Clerk	Town Hall, 210 Central St Hingham, MA 02043	(781) 741-1410	hingham-ma.gov/town-clerk (Certified Town Meeting votes & bylaws)
Hingham Select Board	Town Hall, 210 Central St Hingham, MA 02043	(781) 741-1451	hingham-ma.gov/select-board (Executive session minutes & municipal files)
Hingham Housing Authority	30 Thaxter Park Hingham, MA 02043	(781) 741-1417	hinghamhousing.org (Board minutes, developer RFP & LDA)
Executive Office of HLC (EOHLC)	100 Cambridge St, Suite 300 Boston, MA 02114	(617) 573-1100	mass.gov/orgs/eohlc (c. 121B, § 34 state public housing approvals)
Massachusetts Trial Court	MassCourts Electronic Portal	N/A	masscourts.org (Plymouth Superior & Land Court dockets)
MassHousing (40B Agency)	1 Beacon Street Boston, MA 02108	(617) 854-1000	masshousing.com (Project Eligibility Letters & 40B applications)
Hingham Zoning Board of Appeals	Town Hall, 210 Central St Hingham, MA 02043	(781) 741-1415	hingham-ma.gov/zba (Comprehensive Permit active hearings)

100 Beal Street Senior Affordable Housing • Official Records Verification Guide & Actionable Audit Checklist v1

Town of Hingham Municipal Housing Archive • For Public Records Review & Informational Purposes Only • Not a Formal Title Opinion